

The National Commission For The Scheduled Tribes (Specification Of Other Functions) Rules, 2005

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The National Commission For The Scheduled Tribes (Specification Of Other Functions) Rules, 2005

Rule

THE-NATIONAL-COMMISSION-FOR-THE-SCHEDULED-TRIBES-SPECIFICATION-OF-OTHER-FUNCTIONS-RULES-2005 of 2005

Published on 23 August 2005

Commenced on 23 August 2005

[This is the version of this document from 23 August 2005.]

[Note: The original publication document is not available and this content could not be verified.]

The National Commission For The Scheduled Tribes (Specification Of Other Functions) Rules, 2005

Published vide Notification S.O. 1175(E), dated 23.8.2005, published vide Notification Gazette of India, Extraordinary, Part 2, Section 3(ii), dated 24.8.2005.

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In exercise of the powers conferred by sub-clause (f) of clause 5 of article 338-A of the Constitution, the President hereby makes the following rules to specify the other functions of the National Commission for the Scheduled Tribes,

namely:-

1.

Short title and commencement

.- (1) These rules may be called The National Commission for the Scheduled Tribe (Specification of Other Functions) Rules, 2005.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

The Commission shall discharge the following other functions in relation to the protection, welfare and development and advancement of the Scheduled Tribes, namely:-

(i)

Measures that need to be taken over conferring ownership rights in respect of minor forest produce to the Scheduled Tribes living in forest areas;

(ii)

Measures to be taken to safeguard rights of the tribal communities over mineral resources, water resources, etc., as per law;

(iii)

Measures to be taken for the development of tribals and to work for more viable livelihood strategies;

(iv)

Measures to be taken to improve the efficacy of relief and rehabilitation measures for tribal groups displaced by development projects;

(v)

Measures to be taken to prevent alienation of tribal people from land and to effectively rehabilitate such people in whose case alienation has already taken place;

(vi)

Measures to be taken to elicit maximum cooperation and involvement of tribal communities for protecting forests and undertaking social afforestation;

(vii)

Measures to be taken to ensure full implementation of the Provisions of Panchayats (Extension to the Scheduled Areas) Act, 1996 (40 of 1996

);

(viii)

Measures to be taken to reduce and ultimately eliminate the practice of shifting cultivation by tribals that lead to their continuous disempowerment and degradation of land and the environment.

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